

(Dean Decl.).) The stipulated settlement contains eight enumerated terms. None of these relate to an agreement, by Plaintiff, to forego making any disparaging comments about Chem-Aqua. One of the terms provided that “[t]he parties agree to execute a full and final settlement agreement in the near future and the Court shall retain jurisdiction pursuant to CCP 664.6.” (*Id.* at 1385:18-20.)

“Chem-Aqua's position is that non-disparagement is a standard term of the full and final agreement the parties contemplated, and that it is part of the settlement.” (Support Memo at 2:17-18.) “Enforcing the non-disparagement provision does not ask the Court to add a new term to the parties' bargain. It asks the Court to recognize a term the parties already agreed upon as part of the ‘full and final’ agreement they expressly contemplated.” (Support Memo at 5:24-27.)

The Court disagrees. As noted above, the stipulated agreement recited into the record contains no mention of a non-disparagement term. Moreover, Chem-Aqua fails to provide the Court with any evidence suggesting that Plaintiffs ever agreed to such term. The Court finds no merit in Chem-Aqua's argument that, because Plaintiffs agreed to a non-disparagement clause in other agreements, their agreement to such clause in *this* agreement may be inferred.

“‘The statutory procedure for enforcing settlement agreements under section 664.6 is not exclusive. It is merely an expeditious, valid alternative statutorily created.’ [Citation.] ‘Even though it is not exclusive, [section 664.6] is intended to provide a means for enforcing an agreement that requires nothing more than a single motion.’ [Citation.] ‘ ‘Although a judge hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment [citations], nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.’ ’ [Citation.] As such, ‘[t]he power of the trial court under Code of Civil Procedure section 664.6 . . . is extremely limited. [¶] . . . The court is powerless to impose on the parties more restrictive or less restrictive or different terms than those contained in their settlement agreement.’ [Citation.]” (*Machado v. Myers* (2019) 39 Cal.App.5th 779, 790.)

Based on the foregoing, the Motion is DENIED.

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Whitney Crow v. Puneet Singh et al

23CV001513

[1] MOTION TO STRIKE ISAAC AL GHAZALI'S CROSS COMPLAINT, OR PORTIONS THEREOF

TENTATIVE RULING: The motion is GRANTED IN PART.

Cross-Defendants Puneet Singh, Eshwaramma, Inc., Laxami, Inc., and Durga Ma Inc. move, pursuant to Code of Civil Procedure sections 435 and 436, for an order striking, from the Cross-Complaint filed on May 11, 2026, by Isaac Al Ghazali (Cross-Complaint), Paragraphs 8 and 9 and the Prayer for Relief at Paragraph 10(d), as well as “[a]ny other allegations, averments,

or purported ‘causes of action’ seeking a stay as part of the pleading.” (Notice of Motion at 2:2-13.)

“The court may, upon a motion made pursuant to Section 435 . . . [s]trike out any irrelevant, false, or improper matter inserted in any pleading.” (Code Civ. Proc., § 436, subd. (a).)

Cross-Defendants argue that an operative pleading is not an appropriate procedural vehicle for a request to stay the action and, therefore, the subject prayer for relief, and allegations relating thereto, are irrelevant or improper matters. Mr. Al Ghazali appears to concede the issue by not filing anything in opposition to the Motion.

Based on the foregoing, the Motion is GRANTED IN PART. The Court, on a showing of good cause, orders the Clerk to STRIKE from the Cross-Complaint:

- a. The phrase “and STAY of Proceedings” from paragraph 8;
- b. Paragraph 9 in its entirety; and,
- c. The phrase “STAY pending ownership ruling in Case 25FL000156 (See Ex. A)” from paragraph 10(d).

[2] MOTION TO STAY CROSS-COMPLAINT

TENTATIVE RULING: The matter is CONTINUED to August 27, 2026, at 8:30 a.m. in Dept. B.

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In The Matter of Selene Rodarte Vela

26CV001139

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.